

495B Minister may substitute more favourable decisions for certain computer-based decisions

- (1) The Minister may substitute a decision (the *substituted decision*) for a decision (the *initial decision*) made by the operation of a computer program under an arrangement made under subsection 495A(1) if:
 - (a) a certificate under paragraph 271(1)(l) relates to the computer program and to the initial decision; and
 - (b) the certificate states that the computer program was not functioning correctly; and
 - (c) the substituted decision could have been made under the same provision of the designated migration law as the initial decision; and
 - (d) the substituted decision is more favourable to the applicant.
- (2) The Minister does not have a duty to consider whether to exercise the power under subsection (1) in respect of any decision, whether he or she is requested to do so by the applicant or by any other person, or in any other circumstances.
- (3) Subsection (1) has effect despite:
 - (a) any law of the Commonwealth; or
 - (b) any rule of common law;to the contrary effect.

496 Delegation

- (1) The Minister may, by writing signed by him or her, delegate to a person any of the Minister's powers under this Act.
- (1A) The delegate is, in the exercise of a power delegated under subsection (1), subject to the directions of the Minister.
- (2) The Secretary may, by writing signed by him or her, delegate to a person any of the Secretary's powers under this Act.

S.34
Acts
Interpreter
Act.

Section 497

- (3) If an application for a visa that has a health criterion is made, the Minister may:
 - (a) delegate to a person the power to consider and decide whether that criterion is satisfied; and
 - (b) consider and decide, or delegate to another person the power to consider and decide, all other aspects of the application.
- (4) To avoid doubt, if there is a delegation described in paragraph (3)(a) in relation to an application for a visa:
 - (a) Subdivision AB of Division 3 of Part 2 has effect accordingly; and
 - (b) for the purposes of subsection 65(1), the Minister is satisfied or not satisfied that the health criterion for the visa has been satisfied if the delegate who was given that delegation is so satisfied or not so satisfied, as the case may be.
- (5) Subsection (1A) does not limit subsection 499(1).

497 Delegate not required to perform certain administrative tasks

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- (1) If the Minister delegates the power to grant or refuse to grant visas, the delegation does not require the delegate personally to perform any task in connection with the grant or refusal, except the taking of a decision in each case whether or not a visa should be granted.
 - (2) If the Minister delegates the power to cancel visas, the delegation does not require the delegate personally to perform any task in connection with the cancellation, except the taking of a decision in each case whether a visa should be cancelled.
 - (3) Nothing in subsection (1) or (2) shall be taken to imply that:
 - (a) a person on whom a power is conferred by or under this or any other Act; or
 - (b) a delegate of such a person;is required personally to perform all administrative and clerical tasks connected with the exercise of the power.

498 Exercise of powers under Act

- (1) The powers conferred by or under this Act shall be exercised in accordance with any applicable regulations under this Act.
- (2) Nothing in this section shall be taken to limit the operation of subsection 29(4).

499 Minister may give directions

- (1) The Minister may give written directions to a person or body having functions or powers under this Act if the directions are about:
 - (a) the performance of those functions; or
 - (b) the exercise of those powers.
- (1A) For example, a direction under subsection (1) could require a person or body to exercise the power under section 501 instead of the power under section 200 (as it applies because of section 201) in circumstances where both powers apply.
- (2) Subsection (1) does not empower the Minister to give directions that would be inconsistent with this Act or the regulations.
- (2A) A person or body must comply with a direction under subsection (1).
- (3) The Minister shall cause a copy of any direction given under subsection (1) to be laid before each House of the Parliament within 15 sitting days of that House after that direction was given.
- (4) Subsection (1) does not limit subsection 496(1A).

500 Review of decision

- (1) Applications may be made to the Administrative Appeals Tribunal for review of:
 - (a) decisions of the Minister under section 200 because of circumstances specified in section 201, other than decisions to which a certificate under section 502 applies; or

Section 500

- (b) decisions of a delegate of the Minister under section 501 (subject to subsection (4A)); or
- (ba) decisions of a delegate of the Minister under subsection 501CA(4) not to revoke a decision to cancel a visa; or
- (c) a decision, other than a decision to which a certificate under section 502 applies, to refuse under section 65 to grant a protection visa, relying on:
 - (i) subsection 5H(2) or 36(1C); or
 - (ii) paragraph 36(2C)(a) or (b) of this Act.

Note: Decisions to refuse to grant a protection visa to fast track applicants are generally not reviewable by the Administrative Appeals Tribunal. However, some decisions of this kind are reviewable by that Tribunal, in the circumstances mentioned in paragraph (a), or subparagraph (b)(i) or (iii), of the definition of *fast track decision* in subsection 5(1).

- (2) A person is not entitled to make an application under paragraph (1)(a) unless:
 - (a) the person is an Australian citizen; or
 - (b) the person is a lawful non-citizen whose continued presence in Australia is not subject to any limitation as to time imposed by law.
- (3) A person is not entitled to make an application under subsection (1) for review of a decision referred to in paragraph (1)(b) or (c) unless the person would be entitled to seek review of the decision under Part 5 or 7 if the decision had been made on another ground.
- (4) The following decisions are not reviewable under Part 5 or 7:
 - (a) a decision under section 200 because of circumstances specified in section 201;
 - (b) a decision under section 501;
 - (c) a decision to refuse to grant a protection visa, or to cancel a protection visa, relying on:
 - (i) subsection 5H(2) or 36(1C); or
 - (ii) paragraph 36(2C)(a) or (b) of this Act.

(b) part of:

- (i) the continental shelf of Australia;
- (ii) the seabed beneath the territorial sea of Australia (including the territorial sea adjacent to any island forming part of Australia); or
- (iii) the seabed beneath waters of the sea that are on the landward side of the territorial sea of Australia and are not within the limits of a State or Territory.

Australian sea installation means a sea installation that is deemed to be part of Australia because of the operation of section 9.

Australian waters means:

- (a) in relation to a resources installation—waters above the Australian seabed; and
- (b) in relation to a sea installation—waters comprising all of the adjacent areas and the coastal area.

authorised officer, when used in a provision of this Act, means an officer authorised in writing by the Minister, the Secretary or the Australian Border Force Commissioner for the purposes of that provision.

Note: Section 5D can affect the meaning of this term for the purposes of carrying out identification tests.

authorised system, when used in a provision of this Act, means an automated system authorised in writing by the Minister or the Secretary for the purposes of that provision.

behaviour concern non-citizen means a non-citizen who:

- (a) has been convicted of a crime and sentenced to death or to imprisonment, for at least one year; or
- (b) has been convicted of 2 or more crimes and sentenced to imprisonment, for periods that add up to at least one year if:
 - (i) any period concurrent with part of a longer period is disregarded; and
 - (ii) any periods not disregarded that are concurrent with each other are treated as one period;

Section 5D

- (a) one is the child (including an adopted child) of the other; or
- (b) one is another descendant of the other (even if the relationship between them is traced through an adoptive parent); or
- (c) they have a parent in common (who may be an adoptive parent of either or both of them).

For this purpose, disregard whether an adoption is declared void or has ceased to have effect.

5D Limiting the types of identification tests that authorised officers may carry out

- (1) The Minister, Secretary or Australian Border Force Commissioner may, in an instrument authorising an officer as an authorised officer for the purposes of carrying out identification tests under this Act, specify the types of identification tests that the authorised officer may carry out.
- (2) Such an authorised officer is not an authorised officer in relation to carrying out an identification test that is not of a type so specified.

5E Meaning of *purported privative clause decision*

- (1) In this Act, *purported privative clause decision* means a decision purportedly made, proposed to be made, or required to be made, under this Act or under a regulation or other instrument made under this Act (whether in purported exercise of a discretion or not), that would be a privative clause decision if there were not:
 - (a) a failure to exercise jurisdiction; or
 - (b) an excess of jurisdiction;in the making of the decision.
- (2) In this section, *decision* includes anything listed in subsection 474(3).

Section 43

- (ii) before the removal the High Court, the Federal Court or the Federal Circuit Court had made an order in relation to the non-citizen, or the Minister had given an undertaking to the High Court, the Federal Court or the Federal Circuit Court in relation to the non-citizen; and
 - (iii) the non-citizen's travel to Australia is required in order to give effect to the order or undertaking; and
 - (iv) the Minister has made a declaration that this paragraph is to apply in relation to the non-citizen's travel; and
 - (v) the non-citizen is a person who would, if in the migration zone, be an unlawful non-citizen.
- (3) The regulations may permit a specified non-citizen or a non-citizen in a specified class to travel to Australia without a visa that is in effect.
- (4) Nothing in subsection (2A) or (3) is to be taken to affect the non-citizen's status in the migration zone as an unlawful non-citizen.

Note: Section 189 provides that an unlawful non-citizen in the migration zone must be detained.

43 Visa holders must usually enter at a port

- (1) Subject to subsections (1A) and (3) and the regulations, a visa to travel to and enter Australia that is in effect is permission for the holder to enter Australia:
- (a) at a port; or
 - (b) on a pre-cleared flight; or
 - (c) if the holder travels to Australia on a vessel and the health or safety of a person or a prescribed reason, make it necessary to enter in another way, that way; or
 - (d) in a way authorised in writing by an authorised officer.
- (1A) Subject to the regulations, a maritime crew visa that is in effect is permission for the holder to enter Australia:
- (a) at a proclaimed port; or